

- The above declaration must be filed on or before **Wednesday, February 25, 2026**.
- The hearing on the MJOP is continued to **Monday, March 9, 2026**, at 9:00 a.m. in Department 34.

The Parties are strongly encouraged to discuss resolving this matter during the above meet and confer. The Court has concerns that this matter should not be classified as an unlimited civil matter and/or should be resolved through other means. The Court will address those concerns after it hears from the Parties regarding their meet and confer.

10. 9:00 AM CASE NUMBER: C25-01235
CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF CATHERINE AMOURIS
FILED BY: CAUFFIELD, CHARLES
TENTATIVE RULING:

Plaintiff and Cross-Defendant Charles Cauffield's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 430.41. The Court continues the demurrer hearing on its own motion to **Monday, March 2, 2026**.

Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.

Plaintiff and Cross-Defendant Charles Cauffield shall file a Code of Civil Procedure section 430.41 meet and confer declaration by **Friday, February 13, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." Code Civ. Proc. § 430.41(a).

11. 9:00 AM CASE NUMBER: C25-01812
CASE NAME: THERESA HOFFMAN VS. BASS MEDICAL GROUP
HEARING IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: CAIO FORMENTI
FILED BY: HOFFMAN, THERESA
TENTATIVE RULING:

Pursuant to the Notice of Taking Hearing Off Calendar filed January 22, 2026, this matter is DROPPED from calendar and the hearing VACATED.

12. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY & PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Petitioner Grange Insurance Association ("Petitioner") filed a Verified Petition to Perpetuate Testimony and Preserve Evidence on September 25, 2025 (the "Petition"). The matter was set for hearing on February 2, 2026.

Background

Petitioner seeks an order pursuant to California Code of Civil Procedure sections 2035.010 *et seq.* authorizing "pre-litigation discovery by taking oral depositions and/or preserving evidence for the purpose of perpetuating testimony relevant to an anticipated action involving Respondent Cynthia Gomez." Petition, p. 1.

Petitioner contends that it is "currently unable to bring or cause the anticipated action to be brought because Respondent has served a demand for arbitration on the Petitioner and a complaint has not yet been filed." Petition, p. 3.

Analysis

Code of Civil Procedure section 2035.010 provides that one "who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state" may obtain discovery for the purpose of perpetuating that person's own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed. Code Civ. Proc. § 2035.010. The methods permissible for such discovery are enumerated in Code of Civil Procedure section 2035.020. *Id.* at § 2035.020. Code of Civil Procedure section 2035.010 and the related statutes are referred to herein as the "Preservation of Evidence Statutes."

The Preservation of Evidence Statutes require the filing of a verified petition in the "superior court of the county of the residence of at least one expected adverse party, or, if no expected adverse party is a resident of the State of California, in the superior court of a county where the action or proceeding may be filed." Code Civ. Proc. § 2035.030. The statutes prescribe the matters to be set forth in the verified petition, including:

- (1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California.
- (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought.
- (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.
- (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.
- (5) The facts that the petitioner desires to establish by the proposed discovery.
- (6) The reasons for desiring to perpetuate or preserve these facts before an action has been